

12	Bennett v. General Motors, LLC 2023-01366979 Motion for Summary Judgment and or Adjudication CMC	Defendant General Motors LLC's Motion for Summary Judgment, or in the alternative, Summary Adjudication, is GRANTED in part and DENIED in part. Separate statement defects While Defendant seeks summary adjudication in the alternative, Defendant's separate statement does not comply with California Rules of Court, rule 3.1350, subdivision (h) as it does not set forth individual issue statements as to each cause of action. Plaintiff's separate statement is also defective as it does not comply with the formatting rules pursuant to California Rules of Court, rule 3.1350, subdivisions (f) and (h), including the two-column format. The Court puts counsel on notice all future filings must comply with these rules. Plaintiff's objections to evidence Plaintiff's objections to evidence are OVERRULED. First cause of action for breach of express warranty Commercial Code section 2313, subdivision (1) provides in part: "Express warranties by the seller are created as follows: (a) Any affirmation of fact or promise made by the seller to the buyer which relates to the goods and becomes part of the basis of the bargain creates an express warranty that the goods shall conform to the affirmation or promise. (b) Any description of the goods which is made part of the basis of the bargain creates an express warranty that the good shall conform to the description. . . . (2) It is not necessary to the creation of an express warranty that the seller use formal words such as 'warranty' or 'guarantee' or that he have a specific intention to make a warranty" "To prevail on a breach of express warranty claim, the plaintiff must prove (1) the seller's statements constitute an affirmation of fact or promise or a description of the goods; (2) the statement was part of the basis of the bargain; and (3) the warranty was breached." (<i>Weinstat v. Dentsply Internat. Inc.</i> (2010) 180 Cal.App.4th 1213, 1228.) GM contends Plaintiff's first cause of action for breach of express warranty fails because Plaintiff purchased the vehicle from a third-party dealership. In doing so, GM relies on <i>Ballesteros v. Ford Motor Co.</i> (2025) 109 Cal.App.5th 1196, 1216-1217, which states, "[t]he California Uniform Commercial Code's express warranty provisions are limited to warranties given by the seller directly to the buyer." "It is true that older California cases have held that 'privity of contract is required in an action for breach of either express or implied warranty and that there is no privity
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	between the original seller and a subsequent purchaser who is in no way a party to the original sale.’ . . . But since adopting the UCC, California no longer requires privity for a breach of express warranty claim.” (<i>Alves v. Mercedes-Benz USA, LLC</i> (C.D. Cal. 2024) 2024 WL 4406813, at *4 [citations omitted].) Moreover, the court in <i>Rodriguez v. FCA US, LLC</i> (2022) 77 Cal.App.5th 209, 225 stated that while the Song-Beverly Consumer Warranty Act may not apply to used vehicles that was only accompanied by a balance of the original warranty, “the beneficiary of a transferrable express warranty can sue a manufacturer for breach of an express warranty to repair defects under the California Uniform Commercial Code.” [Citing Com. Code, §§ 2313, 2714, 2715.] When Plaintiff purchased the subject vehicle, she received the balance of the warranty originally issued by GM. (UMF No. 8.) The Court DENIES summary adjudication of the first cause of action. Second cause of action for violation of the Magnuson-Moss Warranty Act Defendant contends Plaintiff’s cause of action for violation of the Magnuson-Moss Warranty Act fails as a matter of law because Plaintiff’s state law claims fail. As the Court denied summary adjudication as to the first cause of action under Commercial Code section 2313, the Court DENIES summary adjudication of the second cause of action. Fourth cause of action under the Consumer Legal Remedies Act (CLRA), Civ. Code, § 1770 The CLRA proscribes specified “unfair methods of competition and unfair or deceptive acts or practices” in transactions for the sale or lease of goods to consumers. (Civ. Code, § 1770, subd. (a).) The unlawful acts or practices include representing that goods have characteristics they do not have and representing that goods are of a particular standard, quality, or grade, if they are of another. (<i>Id.</i>, subds. (a)(5)); and (a)(7).) The CLRA prohibits affirmative misrepresentations as well as omissions of fact that are: (1) contrary to a representation actually made by the defendant; or (2) a fact the defendant was obligated to disclose.” (<i>Gutierrez v. CarMax Auto Superstores Cal.</i> (2018) 19 Cal.App.5th 1234, 1255.) “[A] duty to disclose material safety concerns ‘can be actionable in four situations: (1) when the defendant is in a fiduciary
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		relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; or (4) when the defendant makes partial representations but also suppresses some material fact.” (<i>Id.</i> at p. 1260 [citation omitted].) GM did not have any contact with Plaintiff, and GM did not make any representations to the Plaintiff. (Jensen Decl., ¶ 9.) Plaintiff does not otherwise present any evidence giving rise to a duty to disclose, including that GM had exclusive knowledge of material facts not known to Plaintiff or made partial representations while suppressing some material fact. While Plaintiff submits evidence employees at GM’s authorized repair facility represented the vehicle was operating as intended and safe to drive (Bennett Decl., ¶¶ 3-8), Plaintiff does not present evidence these employees were agents of GM, had exclusive knowledge of material facts not known to Plaintiff, or concealed any material facts. The Court GRANTS summary adjudication of the fourth cause of action.
13	Doe #1 v. Roe 1 2022-01299923 Motion for Summary Judgment and or Adjudication	Defendant The General of the Assemblies of God’s Motion for Summary Judgment or Alternatively Summary Adjudication is GRANTED. Defendant moves for an order granting summary judgment in its favor and against Plaintiff John Doe #1 J.H. (“Plaintiff”), or in the alternative, for summary adjudication of the 32 issues listed in its notice. Plaintiff filed this case under Code of Civ. Proc., § 340.1, the “revivor” statute for child sexual abuse. Plaintiff alleges he was sexually abused in 1983-1985 as a minor at a local church in Riverside, the Pedley Assembly of God Church (“Church”). (First Amended Complaint (“FAC”), ¶¶ 4, 37; UMF Nos. 18, 24, 32.) Plaintiff is unable to identify the alleged wrongdoer, whom he names simply as “Jerry W.” Plaintiff alleges the alleged wrongdoer was involved in a youth program at the Church, the church’s “Royal Rangers” group. (UMF No. 18.) Plaintiff has five remaining claims against Defendant: (1) Sexual Abuse of a Minor (First Cause of Action), (2) Intentional Infliction of Emotional Distress (“IIED”) (Second Cause of Action), (3) Negligence (Fourth Cause of Action), (4) Negligent Supervision (Fifth Cause of Action), and (5) Battery (Seventh Cause of Action). All the claims are based on the alleged sexual abuse by Jerry W. (UMF No. 35; FAC, ¶ 5.) Legal Standard